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Court

SUPREME COURT

Date

1994-07-14

Appeal No.

CIVIL PETITION NO. 161 OF 1994 FOR LEAVE TO APPEAL,

Judge

SAJJAD ALL SHAH C J, FAZAL KARIM AND MUHAMMAD MUNIR KHAN

Parties

BRIG .(RETD) IMTIAZ AHMAD, FORMER DIRECTOR INTELLIGENCE BUREAU OF PAKISTAN
VERSUS GOVERNMENT OF PAKISTAN AND OTHERS

Lawyers

FOR THE PETITIONER: MUHAMMAD AKRAM SHEIKH, ADVOCATE SUPREME COURT
INSTRUCTED BY IMTIAZ MUHAMMAD KHAN, ADVOCATE ON RECORD.FOR THE
RESPONDENT: SHAHZAD JEHANGIR, SENIOR ADVOCATE. IFTIKHAR HUSSAIN
CHAUDHRY, ADVOCATE INSTRUCTED BY RAJA ABDUL GHAFOOR, ADVOCATE, ON
RECORD.RESPONDENT NOS. 2-3: N.R.

Statutes

LAW REFORMS ORDER,1974 - S.3 CONSTITUTION OF PAKISTAN (1973) - ART,185(3)
CONSTITUTION OF PAKISTAN, 1973 - ARTS.199 AND ARTICLE 185(3) FIRST INFORMATION
REPORT

Judgment

FAZAL KARIM, J.- This petition for leave to appeal under Article 185(3) of the Constitution comes from the judgment of the Lahore High Court, Lahore (Khalil ur Rehman Khan and Tanvir Ahmad Khan, JJ.) dated 13.4.1994 passed in an Intra Court Appeal under section 3 of Law Reforms Order, 1974 whereby the appeal of the petitioner Brig. (Retd) Imtiaz Ahmad against the judgment of a learned Judge in chambers (Zia Mahmood Mirza J. as he then was) dated 20-3-1994 was dismissed. The learned Judge in chambers had by that judgment dismissed the petitioner's application under Article 199 of the Constitution.

2. The petitioner retired from the Army as a Brigadier. He was then employed on contract as Director Intelligence Bureau, in which capacity he served from December, 1990 to March, 1993. His case as laid in his application under Article 199 of the Constitution (Writ Petition) was that the leadership of the Pakistan Peoples Party were annoyed with him as they thought that he had master-mind the formation of the Islami Jamhuri Ittehad and had played an important role in destabilizing their Government. When the Pakistan People Party came into power in November, 1993, the Prime Minister of Pakistan issued a directive that disciplinary and criminal proceedings be initiated against the petitioner, inter alia, for misuse of secret funds and abuse of powers to consolidate the previous Government. Accordingly a Special Enquiry Team headed by the respondent, Additional Director-General, FIA, Mr. Masood Sharif, was set up which Team after holding a full-fledged enquiry at the back of the petitioner submitted a report to the Prime Minister. It was said that on the basis of that report, orders for the registration of criminal cases against the petitioner had been issued; from a report appearing in the daily "The News" dated 25.9.1994 he learnt that a criminal case had been directed to be registered against him, among others, on the following grounds: - Embezzlement of huge sums of money through bogus entries of Purchase Orders for Furniture and other items of office equipment; (ii) Misuse of secret service zakat and Baitul-Maal Funds to serve the political interest of the former Prime Minister Mr. Nawaz Sharif; (iii) Accepting Rs.6 lacs every month from Mr. Shahbaz Sharif in return for providing him information about secret meetings of the Opposition Political Parties from time to time. Allegations are also included regarding the Petitioner having tapped the Telephones of political personalities and leaders".

The petitioner feared that he would be involved in all kind of criminal cases; as a first step his name had been brought on the Exit Control List and he had also been placed under round-the-clock surveillance. These steps, it was the petitioner's case, were violative of his Fundamental Right of liberty. His case also was that under the instructions dated 9.3.1975 issued under the FIR Act, 1975, the power to order the registration of a case vests in the competent authority namely the Anti-Corruption Council but the competent authority had in his case been ignored and the order had been obtained from the Prime Minister directly "who has no lawful authority to issue any such order". The petitioner had thus been denied the opportunity to show cause against the registration of criminal cases and this was in violation of para 6(a) of the said Instructions. The criminal proceedings against the petitioner, so went the allegations, were mala-fide. He, therefore, sought the following declarations and directions:- i. On all Charges relating to financial irregularities/corruption, the Respondents are under a legal duty to initiate criminal proceedings in accordance with Instructions dated 5.3.1975 which have the force of law.

ii. Respondent Government is under a legal duty to exclude from consideration any Orders issued by the Prime Minister of Pakistan relating to registration of Criminal case/cases against the petitioner.

It is the Anti-Corruption Council which alone is the competent authority for the purpose of the Special Statute in question.

iii. In a situation where a decision was taken not to register a criminal case straightaway but to hold an enquiry, the Respondent Agency was under a legal duty to obtain an Explanation from the petitioner before taking any concrete step in investigation such as arrest and to place all the relevant material before the competent authority to enable it to arrive at a conclusion after independent application of mind as to whether or not to initiate criminal proceedings.

iv. In the peculiar facts of the instant case and in particular the decision already made by the Prime Minister to register a Criminal case against the petitioner, the only adequate relief available to him now is. for the Respondent Government to place all incriminating material before the High Court to enable it to exercise judicial review to ensure that criminal proceedings are not being initiated for reasons and purposes extraneous to Statute.

v. Initiation of all criminal proceedings against the petitioner is ascribable to mala fide on the part of prominent leaders of the Political Party which is currently in control of the Federal Government.

vi. The Special Investigation Team headed by Respondent Masood Sharif had no lawful authority to conduct any investigation/enquiry directly on the Orders of the Prime Minister and to submit Report directly to her in contravention of the established provision. The petitioner has been treated with discrimination prohibited by the Constitution.

vii. Placement of the petitioner on the Exit Control List is an act without lawful authority.

viii. Fundamental Right of the petitioner to freedom of movement has been violated in the manner in which he has been virtually held a prisoner against his violation.

ix. There is no lawful authority for the manner in which all his telephones are being monitored and his private conversations tapped either by the Respondent Agency or by some other functionaries acting at the behest of the Respondent Government.

"Directions: r; Respondent Government be directed to exclude from consideration the Orders issued by the Prime Minister of Pakistan to initiate criminal proceedings against the petitioner. These are contrary to law.

(ii) Respondent Government be directed to exclude from consideration all findings/conclusions/reports prepared by Respondent Masood Sharif in relation to the petitioner on the Charges as reported in Media.

flirt In the peculiar circumstances of this case where Prime Minister has already indicated her mind and resolve at a previous stage. Respondent Government be restrained from registering any criminal case against the petitioner unless High Court has had an opportunity to exercise its constitutional jurisdiction to conduct a judicial review o any decision taken in accordance with the prescribed procedure to ensure that it has not been taken for reasons and purposes extraneous to the Statute.

f,v) In any case, Respondent Government be restrained from with-holding or abridging the opportunity available to other similarly situate public servants from the petitioner to approach and seek relief from ordinary Courts of Law including pre-arrest bail.

Copies of all F.I.Rs registered against the petitioner be made available to enable h.m to seek such relief.

(v) Respondent Government be directed to delete the name of the petitioner from the Exit Control List.

(vi) Respondent Government be directed to forthwith terminate the surveillance placed on the petitioner.

(vii) Respondent Government be directed to stop tapping all relevant ' telephones of the Petitioner and destroy the record of all private conversations obtained through such monitoring.

(viii) Any other relief deemed appropriate to the peculiar facts of this case be also afforded to the petitioner".

3. Before the learned Judge in chambers, an¹ appeared and slated that a case under sections 201, 409, 468, 471 and 109 P read with section 5 of the Prevention of Corruption Act II of 1947_ had bee registered against the petitioner on 16.3.1994, the allegations being that he had misused and mis-appropriated as much as Rs.22 millions from the Fund and had destroyed the incriminating evidence against him. The Assista Director stated further that one Col. Ikram Ullah has already been arrested.

4 The main attack of learned counsel for the petitioner before the learned Judge in chambers was to the validity of the registration of the crmin case and the basis of that attack were the "Instructions Regarding mvestigation of cases of bribery and corruption by the Federal Investigating Agency". The Instructions). It was contended that after the F1A had held apreliminary'enquiry into the allegations of bribery and corruption, it was required under paragraph and 7 of the Instructions to obtain the explanation of the petitioner and then refer the matter to the competent authority namely the Anti-Corruption Council for its omcurrence to the registration of the case and that course had not been followed FV 7k C!f betD reglstered on the order of the Prime Minister. On being s ed by the learned Judge in chambers, the Assistant Director, FIA, who was present in the Court, stated that there was no order on the file for the registration ot the case against the petitioner, and that the case had been registered on the complaint received from the Intelligence Bureau. The learned Deputy Attorney general who appeared for the respondents was of the view that the Instructions had no statutory force and m any case they applied to serving officers. The learned udge in chambers agreed with the learned Deputy Attorney General that the Instructions were "intended to apply only to the Officer who was in actual service and not to those who are no more in service even though the enquiry or the proceedings abated are relatable to the acts committed by them when in service.

his view, so held the learned Judge in Chambers, was "further reinforced by the proviso to para 4 which states that the reference to the competent authority shall not be necessaiy m the case of those Government servants who are not governed by section 197 Cr.P.C." That view received support from "Ha'med Ghulam Sadiq V. Pakistan and others" (PLD 1960 SC (Pak) 351) and "Kashavlal Mohanlal Shah V. State of Bombay" (AIR 1961 S.C. 1395)".

5. As to the allegation that the petitioner's telephones were being regularly tapped the Assistant Director, FIA, so observed the learned Judge in chambers, vehemently controverted this allegation and stated categorically that FIA has not tapped the petitioner's telephones.". The allegation having been erved so held the learned Judge w chambers, "cannot be gone into in these proceedings . In the view of the learned Judge in chamber, therefore, the Writ Petition had no merit.

6. Belore the learned Judges who heard the Intra Court Appeal the mam grievance of the

petitioner's counsel was that "the learned single Judge despite noting in the judgment the declaration sought and directions prayed for in the writ petition failed to deal with the same except the question of applicability of Instructions dated 5.3.1975 regarding investigation of cases of bribery and corruption by the Federal Investigating Agency (annexure-11 to the writ petition).

no other grievance made was that the learned Judge in chamber had said nothing about the tapping of phones by the other agencies (that is agencies other than the Federal Investigating Agency)". Before the learned Judges, the learned Advocate General and the learned Deputy Attorney General xxx stated "that the Prime Minister has neither passed any order nor issued any direction to any agency to involve the appellant in criminal cases nor any agency of the Federal Government is tapping the phones of the appellant nor there is any order passed regarding surveillance of the appellant and as such the right of freedom of movement of the appellant has not been infringed except to the extent that he is wanted in case HR No.4 registered with FIA/SIU, Islamabad and another case Xpp F.I.R dated 23/1994 for offences under sections 382/452/506 and 109 PPC with police of Police Station Aabpara, Islamabad.

They further stated that except for aforementioned two criminal cases, no other criminal case has been registered against the appellant".

7. Regarding "the placement of appellant's name on the exit control list", the fact was confirmed but it was stated that "the appellant can move for review under section 3 of the Exit from Pakistan Control (Ordinance), 1981 and such a review/representation, if made, will be dealt with in accordance with law. The learned Law Officer also stated that the inclusion of the name of the appellant in that list was prima facie justified "as case of embezzlement of colossal amount stands registered against him". The learned Advocate General also informed the learned Judges "that the accusation which are the basis of the FIR registered with FIA would be furnished to the appellant so as to provide him opportunity to explain his position to the said accusation and that this opportunity is being granted without conceding any such right being claimed under the instructions dated 5.3.1975".

8. In view of these statements and assertions, the learned Judges did not deem it necessary to deal "with the declarations and the Directions sought respecting the placement of the appellant on the exit control list. The plea regarding tapping of phones; alleged direction/order of the Prime Minister to initiate criminal proceedings against the appellant and to exclude from consideration the alleged report prepared by Mr. Masood Sharif regarding embezzlement /defalcation in relation to the appellant as it was stated that no such report has been prepared by Mr. Masood Sharif and his placement under surveillance need not be dilated upon as all these have categorically been denied/ controverted by the learned Law Officers".

9. Dealing with the question whether the Instructions dated 5.3.1975 applies to the petitioner and whether the petitioner can claim that the accusation contained in FIR No.4 can only be scrutinised by a Parliamentary Committee and cannot be subject matter of the inquiry under the ordinary criminal law, the learned judges found that the view taken by the learned Judge in chambers was supportable on the authority of the precedent cases "Ataur Rahman V. The State (P.L.D. 1967 Supreme Court 23) and "Keshavlal Mohanlal Shah Vs. State of Bombay" (AIR 1961 Supreme Court 1395). They went on to observe that the petitioner's counsel "has not followed the line of arguments advanced before the learned single Judge", and what he argued was that "Instructions provide salutary rule of principle of natural justice of allowing opportunity of hearing and explanation to the accusation. Such an opportunity cannot be denied to the appellant merely for the reason that he stands retired from Government service or is no more holder of the public office". This argument, so held the learned Judges, was "totally devoid of any force". If "this plea

on its face value is accepted then no criminal case can be registered against any one without calling the explanation in advance". Learned counsel for the petitioner then relied upon the observations contained in para 30 of this Court's judgment in "Khawaja Ahmad Tariq Rahim vs. The Federation of Pakistan" (PLD 1992 Supreme Court 646). These observations so held the learned judges, "were made with respect to utilisation of secret funds by the Prime Minister/Ministers and it was observed that action for misuse or defalcation of such funds should be before a Committee specially constituted by Parliament for this purpose, or before a Tribunal constituted for this specific purpose by law, whose proceedings are held in the strictest secrecy. The Prime Minister or any Minister utilising such funds is bound by his or her oath of secrecy not to divulge the nature or its use or appropriation. If the uses were disclosed, it could lead to disaster and whether they were true or false, how they could be verified". In the view of the learned Judges the above referred to observations of this Court did not apply to an Officer of Intelligence Bureau, "as according to their own Code, they are supposed to maintain proper record and accounts of the fund utilized. These accounts are to be audited periodically while the utilisation of funds by the Prime Minister or Minister are to be dealt with under separate instructions". It was for the maintenance of secrecy regarding the utilisation of these funds that "details of the defalcation of funds was not given in the FIR" and "after enquiry if the prosecution comes to the conclusion that a case worth trial is made out then request to hold the proceedings in camera can be made". The learned Judges were not prepared to accept the plea that "utilisation of funds by the officers of Intelligence Bureau amounts to an act of State and that act of State cannot be subjected to municipal law". In the present dispensation, accountability of public servants, so observed the learned judges, "cannot be made beyond the reach of law specially in view the judgment in the case of "Federation of Pakistan Vs. Zafar Awan, Advocate High Court" (PLD 1992 Supreme Court 72").

10. The learned Judges were, therefore, of the view that the petitioner should avail himself of the opportunity of furnishing explanation before the Federal Investigating Agency. They had no doubt in their mind that "the officers of the FLA will abide by the undertaking given by the learned Advocate General on their behalf in letter and spirit".

11. We have thought it necessary to notice the points raised before the learned Judge in Chamber and the learned appellate Judges and the treatment that was accorded to them at some length, for one of the arguments before us was that the points raised in the writ petition were important questions of law but they were not properly disposed of. We have seen that although the writ petition was a lengthy document, yet the only point learned counsel for the petitioner thought it worth his while to raise before the learned Judge in Chamber was the applicability of the Instructions and the effect of their non-compliance. The judgment of the learned Judge shows that point received a detailed consideration. Similarly, the learned appellate Judges noted all the points canvassed before them and gave them such consideration as they deserved. The judgments of the learned Judges in the High Court cannot, therefore, be faulted on that score.

12. The power under Article 199 of the Constitution is the power of judicial review. That power "is a great weapon in the hands of Judges, but the Judges must observe the constitutional limits set by our parliamentary system on their exercise of this beneficial power, namely, the separation of powers between the Parliament, the Executive and the Courts". (Lord Scarman in Nottinghamshire C.C. Vs. Secretary of State -(1986) (All E.R. 199, 204), Judicial review must, therefore remain strictly judicial and in its exercise, Judges must take care not to intrude upon the domain of the other branches of government. As was succinctly put by Hamoodur Rahman J. (as he then was) in Mir Abdul Baqi Baluch V. The government of Pakistan (PLD 1968 S.C. 313, 324), under a constitutional system which provides for judicial review of executive actions- "it is, in my opinion, a fallacy to think that such a judicial review must be in the nature of an appeal against

the decision of the executive authority. It is not the purpose of judicial authority reviewing executive actions to sit on appeal over the executive or to substitute the discretion of the Court for that of the administrative agency".

13. This, we should think, is trite law. Viewed in this light, the judgments of the learned Judges in the High court appear to us to be instances of that judicial restraint which is so essential "to the continuance of rule of law", "for the continued public confidence in the political impartiality of the judiciary" and the voluntary respect for the law as laid down and applied by the Courts. (See *Duport Steels Ltd. V. Sirs* (1980) 1 All E.R.529).

14. The starting point of the examination of the legal questions canvassed by the petitioner's counsel must be the important fact that the stage at which the petitioner thought it proper to invoke the High Court's jurisdiction under Article 199 of the Constitution was the stage of registration of criminal cases against him. The effect of the registration of a case is to set in train an investigation by the police in accordance with law. As was said in *Norwest Holst Ltd. Vs. Department of Trade and other* (1978) 3 All ER 280 at 290: "In every investigation.... there are.... by and large three different phases. First of all, the administrative phase; next, the judicial phase; and, finally, the executive phase when the orders of the court or the tribunal are, if necessary, executed or promulgated. Quite plainly fairness to the suspect.....demands that he should be given a chance of stating his case before the final period: the execution.....Equally fairness demands that the suspect shall be given a chance of putting his side of the case before the judicial inquiry is over...., But on the other side, and the other side are entitled to fairness, just as the suspect is, fairness to the inquirer demands that during the administrative period he should be able to investigate without having at every stage to inquire from the suspect what his side of the matter may be. Of course it may be difficult to find out the particular point at which the administrative phase ends and the judicial phase begins...." To quote a passage from Lord Reid's speech in *"Wiseman V. Bornman"* (1971 ne A.C. 297, at 308):- "Every public officer who has to decide whether to prosecute or raise proceedings ought first to decide whether there is a prima facie case, but no one supposes that justice requires that he should first seek the comments of the accused or the defendant on the material before him. So there is nothing inherently unjust in reaching such a decision in the absence of the other party".

15. There is then the question of the High Courts' jurisdiction to interfere in these matters under Article 199 of the Constitution. It is to be noted that the reliefs that the petitioner seeks fall under clause (1) sub-clause (a) (i) and (ii) of Article 199 of the Constitution. The jurisdiction which the High Court exercises under clause (a) (ii) of clause (1) of Article 199 of the constitution is the jurisdiction to declare that "any act done or proceeding taken within the territorial jurisdiction of the Court by a person performing functions in connection with the affairs of the Federation, a Province or a local authority has been done or taken without lawful authority and is of no legal effect". This was the writ jurisdiction which was conferred upon the High Courts in Pakistan for the first time in 1954 by section 223-A of the Government of India Act, 1935, which Act then served as the Constitution of Pakistan. As was said by Kaikaus J. In *jamal Shah case* (PLD 1966 S.C-1, 50) a suit asking for a declaration that the order in question is without jurisdiction and as such a nullity is like proceedings under Article 98 of the then Constitution, in so far as that Article empowers the High Courts to declare an act or proceedings to have been done or taken without lawful authority and to be of no legal effect, in *"Imperial Tobacco Ltd, and another Vs. Attorney-General"* (1981) A.C. 718), the plaintiffs, tobacco manufacturers, started a "Spot Cash" advertising scheme and inserted some 260,000,000 "Spot Cash" cards into cigarette packets which were then sold at the same price as before the scheme started. After the scheme had been started, the Director of Public Prosecutions who considered that the scheme was illegal, had summonses issued by the Nottingham justices against the plaintiffs and four of their directors or managers alleging that in furtherance of the scheme they had distributed tickets in

an unlawful lottery contrary to section 2(1) (b) of the Lotteries and Amusements Act 1976. The plaintiff brought an action claiming a declaration that the scheme was lawful and did not contravene the provisions of the Act of 1976 as being either a lottery or an unlawful competition. The learned trial Judge held that he had the jurisdiction to hear the summons but dismissed the claim for a declaration on the ground that the scheme was both an unlawful lottery and unlawful competition. There was an appeal and the Court of Appeal allowed it. On appeal to the House of Lords the matter was considered from two angles (1) jurisdiction of the civil courts to grant such a declaration and (2) and if there was jurisdiction whether it was a case in which the discretion of the Court should have been exercised to make the declaration. On the first question, Viscount Dilhorne held that the decision of the Court of Appeal.

"If it stands, will form a precedent for the Commercial Court and other civil courts usurping the functions of the criminal courts.....If in this case where the declaration sought was not in respect of future conduct but in respect of what had already taken place, it could properly be granted, I see no reason why in such cases a declaration as to future conduct could not be granted.....The jurisdiction for the Court of Appeal taking this unusual and unprecedented course-no case was cited to us where a civil court had after the commencement of a prosecution, granted a declaration that no offence had been committed was said to be the length of time it would have taken for the matter to be determined in the criminal courts. I can well see the advantages of persons being able to obtain rulings on whether or not certain conduct on which they propose to embark will be criminal and it may be a defect in our present system that it does not provide for that. Here, I wish to emphasise, it was not a question whether future conduct would be permissible but whether acts done were criminal. It was said that the administration of justice would believe its name if civil courts refused to answer reasonable questions on whether certain conduct was or was not lawful. I do not agree. I think that the administration of justice would become chaotic if, after the start of a prosecution, declarations of innocence could be obtained from a civil Court".

16. On the question of the exercise of judicial discretion, Lord Fraser said that "this is not a case in which the discretion of the court should have been exercised to make the declaration. By doing so the civil Court, in my opinion, improperly intruded into the domain of the criminal court, notwithstanding that criminal proceedings had already been begun...." And Lord Lane had no doubt that "anyone is entitled to apply to the Court for a declaration as to their right unless statutorily prohibited expressly or by necessary implication, held that it would be strange if the defendant to a proper criminal proceedings were able to pre-empt those proceedings by application to a judge of the High Court whether sitting in the Commercial Court or elsewhere....Where however criminal proceedings have been properly instituted and are not vexatious or an abuse of the process of the court it is not a proper exercise of the court's discretion to grant to the defendant in those proceedings a declaration that the facts to be alleged by the prosecution do not in law prove the offence charged." 17. Along the same lines has the law developed in this country. As recently as January, 1994, this Court in "Malik Shaukat Ali Dogar and 12 others V. Cihulam Oasim Khan Khakwani and others" (PLD 1994 S.C. 281), had the occasion to deal with the question of the nature of the continued control exercised by the Court over the investigation" in the light of two orders made by a learned Judge in the High Court during the pendency of a writ petition. The first order directed the Investigating Officer to finalize the investigation by a certain date and in the second order which was made on the statement of the Investigating Officer that out of the 21 accused persons, only two had been arrested and that challan was being submitted, the learned Judge observed that if "most of the accused have not been arrested what is the use of submitting the challan", that he was not satisfied with the performance of the Anti-Corruption Department and directed notice to be issued to the Additional Director Anti-Corruption to appear and show cause "as to why adverse observation about his efficiency and performance should not be passed by this Court and the same should be placed

on his personal file". This Court thought it necessary to re-iterate the Privy Council's classic words of caution to the Courts in the matter of interfering with the police investigation in *Khawaja Nazir Ahmad* case (AIR 1945 Privy Council 18) namely: "Just as it is essential that every one accused of a crime should have free access to a Court of justice so that he may be duly acquitted if found not guilty of the offence with which he is charged, so it is of the utmost importance that the judiciary should not interfere with the police in matter which are within their province and into which the law imposes upon them the duty of enquiry... There is a statutory right on the part of the police to investigate the circumstances of an alleged cognizable crime without enquiring any authority from the judicial authorities and it would, as their Lordships think, be an unfortunate result if it should be held possible to interfere with those statutory rights by an exercise of the inherent jurisdiction of the Court. The functions of the judiciary and the police are complementary not overlapping and the combination of individual liberty with a due observance of law and order is only to be obtained by leaving each to exercise its own function, always of course, subject to the right of the Court to intervene in an appropriate case when moved under section 491 Criminal Procedure Code to give directions in the nature of habeas corpus. In such a case as the present, however, the Court's functions begins when a charge is preferred before it and not until then".

This Court held, therefore, "that the continued control over the investigation exercised by the Court as in this case was prejudicial to the accused and detrimental to the fairness of the procedure apart from being without jurisdiction".

18. The significance of the above quoted observations lies in the fact that one of the declarations sought by the petitioner was to direct the Government "to place all incriminating material before the High Court to enable it to exercise judicial review to ensure that the criminal proceedings are not being initiated for reasons and proposes extraneous to statute". In other words what the petitioner wanted the High Court to do was to assume the role of Investigator. This could obviously not be done, for the authority to register and investigate a criminal case in law vests in the police and not in court. We must hold, therefore, that the learned Judges in the High Court were eminently justified is not assuming that role.

19. Learned counsel for the petitioner made grievance of the fact that the Learned Judges in the High Court had not dealt with the points raised before them in accordance with law. According to him the main challenge to the proposed action against the petitioner was on the ground of mala fides and this had not received proper treatment at the hands of the learned Judges in the High Court. As regards the allegation of the tapping of telephones and the continuous surveillance the learned Judges should have, so went the argument, made enquiries to find out if the allegations were true and should not have been content to merely rely upon the denial of the FIA. In that behalf he referred to the "Rules for the issue of Writs" made under Article 170 of 1956 Constitution, rule 7 in particular, which provides: (7) All question arising for determination of such petition shall be decided ordinarily upon affidavits but the Court may direct that such questions as it may consider necessary be decided on such other evidence and in such manner as it may deem fit and in that case it may follow such procedure and may pass such order as may appear to it to be just.

The principal argument which the learned counsel for the petitioner pressed on us was that the matter relates to secret service fund, which is a matter of very sensitive nature and the petitioner is bound by his oath of secrecy not to divulge the nature of its use or appropriation. For this contention he relied upon the observations of Rustam S.Sidhwa J. (as he then was) in "*Khaw;qa Ahmad Tqriq Rahim V. The Federation of Pakistan through Secretary. Ministry pf Law and Parliamentary Affairs (PLD 1992 S.C.*

646, at page 698) and also some of the observations of Rustam S.Sidhwa j. in "Mohtarma Benazir Bhutto V. The President of Pakistan (PLD 1992 S.C. 492). In the view of the learned counsel for the petitioner to ask the petitioner to disclose the use of secret service funds is to expose him to a charge of high treason and this offends against his right guaranteed by Article 13 of the Constitution namely that no person shall, when accused of an offence, be compelled to be a witness against himself.

Learned counsel asserted that the petitioner is a national hero, that he is not an ordinary man; he went so far as to equate him, as Director Intelligence Bureau, with the Prime Minister.

20. We have been taken through the two judgments of the learned Judges in the High Court and we find that all the points of law and facts canvassed before the learned Judges were properly considered and disposed of. As was held in Muhammad Abdu Miah case (PLD 1959 S.C. (pak) 276), it is helpful to bear in mind that there is a presumption that official acts have been regularly performed i.e. with due regard to the relevant formalities and within the relevant powers and that a conclusion of excess and irregularity is, therefore, not to be lightly reached. The learned Judges were entitled to proceed on that basis and when the learned Advocate General and the Deputy Attorney General stated at the bar that there had been no tapping of phones and the petitioner had not been placed under surveillance, it was within the discretion of the learned Judges to let the matter rest at that and not to embark upon a factual enquiry into the allegations. In proceeding as they did, the learned Judges were in our view also acting in accordance with rule 7 of "Rules for the issue of Writ" which rule empowers the Court to direct that such questions as it may consider necessary be decided on such other evidence and in such manner as it may deem fit and in that case it may follow such procedure and may pass such order as may appear to it to be just .

21. The question of the impugned action being mala fide was also dealt with adequately by the learned appellate Judges, by observing that the news reports containing the statement of the Prime Minister were all made before the assumption of the office of the Prime Minister and that the news report dated 25.1.1994 did not emanate from any official source. The learned Judges were also in our opinion right in accepting the statement of the Deputy Attorney General and the Advocate General that the Prime Minister had not made any order "so as to invoke the appellant in criminal cases". The matter, as regards the criminal proceedings against the petitioner, has not passed the administrative phase and the learned Judges in our opinion rightly dismissed the petitioner's claim that he had a right of hearing at that stage. The petitioner's reliance upon the observations in Mohtarma Benazir Bhutto case and Khawaja Ahmad Tariq Rahim case was also wholly misplaced. The observations in both those cases were made in the context of, and are authority for, their own facts. Khawaja Ahmad Tariq Rahim case concerned the dissolution of the National Assembly, and the observations had reference to one of the grounds which had influenced the President in making the order of the dissolution of the National Assembly namely the use of the secret funds.

In Mohtarma Benazir Bhutto case, the order in question had been made by the Special Court in President Reference No.II of 1990, "allowing the claim of privilege preferred by the Director of Intelligence Bureau, Government of Pakistan in respect of certain documents whose production was sought for by the appellant during the trial of the proceedings". This Court accepted the appeal of Mohtarma Benazir bhutto, set aside the order of the Special Court and directed the Special Court to reconsider the question in the light of the peculiar facts of that case. Rustam S.Sidhwa J.agreed with the final order proposed to be made by Shafiur Rahman J. who wrote the leading judgment but as there were a number of matters on which he wished to express himself, he wrote a separate note. In that note he observed that the Intelligence Bureau is a highly secret and sensitive agency whose activities and internal working require to be kept at the

highest level of secrecy and confidentiality in the larger national interest and that its information and documents apart from any question of public interest, by practice and procedure require to be maintained in the strictest confidence... But the rule, with regard to privilege in criminal proceedings, so held the learned Judge, is "somewhat restricted and limited as opposed to civil proceedings where it has a larger play". The view in such matters, the learned Judge went on to say, is that "if the documents are relevant to establish the commission of crime or fraud by the accused and are not made for legitimate purposes such as for the preparation of the defence of the accused which the interest of justice may require to be kept confidential, the documents would not be privileged". Shafiur Rahman J. in considering the question whether the documents were privileged document referred to John Henry Wigmore's 'The Anglo-American System of Evidence in Trials at Common Law' in which the learned author answered the question-Whether there are any matters of fact, in the possession of officials, concerning solely the internal affairs of public business, civil or military, which ought to be privileged from disclosure when material to be ascertained upon an issue in a Court of Justice-with the following pertinent observations: "Ordinarily, there are not. In any community under a system of representative government and removable officials, there can be no facts which require to be kept secret with that solidity which defies even the inquiries of a Court of justice. "To cover with the veil of secrecy", said Patrick Henry, "the common routine of business, is an abomination in the eyes of every intelligent man and every friend to his country". Such a secrecy can seldom be legitimately desired. It is generally desired for the purposes of partisan politics or personal self-interest. The responsibility of officials to explain and to justify their acts is the chief safeguard against oppression and corruption. Whether it is the relations of the Treasury to the Stock Exchange, or the dealings of the Interior Department with Government lands, the facts must constitutionally be demandable, sooner or later, on the floor of Congress. To concede to them a sacrosanct secrecy in a Court of justice is to attribute to them a character which for other purposes is never maintained, a character which appears to have been advanced only when it happens to have served the interests of some individual to obstruct investigation into facts which might fix him with a liability".

We hold, therefore, that the observations relied upon by the learned counsel for the petitioner in the above cited precedent cases do not help him at all. On the contrary we find that the trend of judicial authority as noticed in Mohtarma Benazir Bhutto case is against any such immunity from accountability as is being claimed for the petitioner, particularly when the matter concerns the commission of a crime or fraud. It was held in Mohtarma Benazir Bhutto case that the capacity of the petitioner as Director, Intelligence Bureau, was that of head of the department. We can find nothing in those observations, and no provision of law was cited, to justify the equiparation of the Director with the Prime Minister or a Minister. Also, we do not know of any law nor was any cited conferring immunity against criminal prosecution upon a public servant like the petitioner. We discountenance the contention that such an immunity exists. To hold otherwise would amount to this that the Director Intelligence Bureau is not only above the law, but law unto himself. He was the holder of a public office and the question that the criminal courts will be called upon to determine, if after due investigation, the petitioner is challaned to stand his trial, will be whether he had committed criminal breach of trust in his capacity of Director. To the very unusual assertion that the petitioner is not an ordinary man xx we shall be content to recall, for the benefit of all concerned, the following observations of Wilmot CJ.

in that historic case Wilkes Vs. Wood (1769) 19 St Tr. 1406: 'The law makes no difference between great and petty officers; thank God, they are all amenable to justice . Then, the question being of the misappropriation of public money and misuse of public power, we do not think that any question of violation of Article 13 of the Constitution can arise at this stage.

21. For these reasons we do not think that any ground for leave to appeal is made out. The petition is dismissed.

22. Before we part with this case, it would be pertinent to mention that on the first date of hearing an attempt was made by the counsel for the petitioner to file in the Court objections in writing questioning the composition of this Court and appointment of the Chief Justice, which were returned as not properly filed on two grounds. Firstly that they were not filed in the office as is normally done and secondly that they were irrelevant and frivolous having no nexus with subject matter of petition under hearing. No further effort was made to reagitate or press those objections during the hearing; nor were the objections re-filed in accordance with the rules.

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